

WEST VIRGINIA DIVERSION / DEFERRED-ADJUDICATION FILING GUIDE

Prepared for: Alexandria Montgomery-Vandenberg Example

Current civil petition and venue

File a civil petition in the circuit court of Kanawha County, where the charges were filed, even if the original case was in magistrate or municipal court. The civil action number is assigned by the circuit clerk; do not copy the criminal case number into that blank. This packet uses the adopted current-law custom petition and supplement. It does not use the old SCA-C903 text.

The selected program is deferred adjudication under W. Va. Code Sec. 61-11-22a. Confirm that program type from the actual signed agreement or entered order, not memory. Unknown or disputed program type requires legal help.

Supporting records are required before filing

Obtain the certified dismissal order; the signed diversion agreement or entered deferred-adjudication order; and the court record showing full successful completion. Ask the entering court clerk for court records and the prosecutor for the signed diversion agreement. Attach the actual records identified as Exhibits A, B and C. Compare their case identity, program, completion and dismissal dates against every claim in this packet.

Synthetic diagnostics are never real orders or certificates. The review samples carry three conspicuous diagnostic pages to show attachment roles. Do not file synthetic pages; replace them with the actual supporting records.

Sixty-day timing and all charges

The dismissal order date supplied here is 07/16/2026. Sixty calendar days later is 09/14/2026. File no earlier. Confirm the date on the actual order and any court calendar rule with the clerk. A completion date is not a substitute for the dismissal date.

List every charge originally brought, including charges dropped along the way. All charges sought must arise from the same transaction or occurrence. This packet includes complete repeated count rows and allows additional pages; do not omit charges to fit a template.

Eligibility boundaries and limits

Any prior felony conviction bars this route. Stop for disputed or incomplete compliance, an unexpired program, pending related proceedings, an uncertain same-incident connection, or a dismissal exchanged for a guilty plea to another offense. A deferred adjudication ending with a conviction for a lesser offense is outside this dismissal route.

For deferred adjudication, violations of sections 61-2-28(a), 61-2-28(b), 61-2-9(a), 61-2-9a, 61-2-9(b) or 61-2-9(c) cannot be expunged under this route where the alleged victim is a family or household member under section 48-27-204. This carve-out attaches to deferred adjudication, not pretrial diversion. If any deferred-adjudication victim may be a family or household member, obtain legal help.

Pretrial diversion under section 61-11-22 generally may not exceed 24 months and excludes DUI under section 17C-5-2. Deferred adjudication may run up to three years for a felony and two years for a misdemeanor. This packet is not a section 17C-5-2b DUI route and seeks no DMV relief.

Criminal investigation reports and the excluded section 15-12-1 mental-condition acquittal records are outside this relief. Obtain legal assistance for immigration, firearm, federal, military, tribal or out-of-state questions.

Sign, serve and file

Review and personally sign the petition and supplement. The adopted route identifies no notarization requirement for these motions. Sign and date the certificate only after actual service; fill the real recipient, method and service date then. The supplied prosecutor office address must be checked against the current county address before service.

Serve the county prosecuting attorney with the civil petition, supplement and accompanying papers. Confirm civil service mechanics and any required additional recipients with the circuit clerk. File the service certificate with the packet when the service it certifies has occurred. The custodian list identifies record holders and does not certify they have been served.

No filing fee is charged and no costs are assessed for an action under section 61-11-25(g), so no fee-waiver component is needed. File with the circuit clerk, using the actual completed exhibits and the proposed order. The judge and clerk complete their own blanks.

Hearing and order

A hearing is discretionary. If the court sets one, it notifies the prosecutor and arresting agency and permits a response. An opposed or contested hearing requires legal help; the initial packet may still be prepared. Keep copies of your filed papers and any signed order.

An unsigned proposed order does nothing. If relief is granted, follow the entered order and confirm records were processed with the clerk and identified custodians. The statute governs sealing, certification, legal effect and later inspection; do not assume every private database or excluded record disappears.

Review sample

All sample personal and case facts are fictional. Do not file this sample packet or any synthetic exhibit.